



February 13, 2025

Rep. G. Murrell Smith, Jr.
Speaker of the House
506 Blatt Bldg.
Columbia, South Carolina 29201

Rep. Thomas E. Pope
Speaker Pro Tempore
505 Blatt Bldg.
Columbia, South Carolina 29201

Rep. David R. Hiott
Majority Leader
518C Blatt Bldg.
Columbia, South Carolina 29201

Rep. J. Todd Rutherford
Minority Leader
355B Blatt Bldg.
Columbia, South Carolina 29201

RE: Letter in Opposition to South Carolina H 3431

Dear Speaker Smith, Speaker Pro Tempore Pope, Majority Leader Hiott, Minority Leader Rutherford, and Co-Sponsors of H 3431:

On behalf of the responsible digital advertising industry, we oppose South Carolina H 3431.¹ We write to express our significant concerns with the proposed legislation and provide a non-exhaustive list of those concerns below.

We and the companies we represent, many of whom do substantial business in South Carolina, strongly believe consumers deserve meaningful privacy protections supported by reasonable government policies and responsible industry practices. However, as presently drafted, H 3431 raises significant First Amendment concerns for South Carolina minors and businesses alike, similar to concerns raised by a comparable law in Texas.² The bill would also have negative effects on South Carolina minors by limiting the content and information available to them. **We therefore respectfully ask you to decline to advance the bill as presently drafted.**

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.³ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls.

¹ South Carolina H 3431 (Reg. Sess. 2025), located [here](#).

² Wendy Davis, MEDIAPOST, *Judge Blocks Texas Restriction on Targeted Ads to Teens* (Feb. 7, 2025), located [here](#).

³ John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

I. The bill imposes unconstitutional restraints on access to information by South Carolina minors.

H 3431 would flatly prohibit the display of any targeted advertising in a South Carolina minor's social media account.⁴ This prohibition on targeted advertising would be overinclusive and therefore unconstitutional. All Americans, including South Carolina's minors, have a First Amendment right to receive truthful advertising. It is not clear what governmental interest H 3431's total prohibition on targeted advertising to South Carolina minors in their social media accounts purports to advance, nor can such a ban be narrowly tailored to advance any reasonable state objective.⁵ Simply put, the bill's complete prohibition on the display of targeted advertising to a South Carolina minor account holder would violate South Carolina minors' First Amendment right to receive lawful information.

II. The bill also imposes unconstitutional restraints on the lawful commercial speech of businesses and nonprofits.

H 3431 would impinge on the First Amendment rights of businesses and mission-driven nonprofits to communicate their lawful messages. Time and time again, courts have affirmed First Amendment protections for commercial speech such as advertising by making clear that consumers, businesses, and society overall have strong interests in the free flow of commercial information.⁶ If enacted, H 3431 would prohibit myriad South Carolina businesses and nonprofits from efficiently reaching teenagers with their important messages, including churches, emergency assistance humanitarian organizations, housing organizations, educational or trade program opportunities, military recruiters, and countless other charitable organizations on channels frequented by these audiences.

III. The broad sweep of the bill would limit South Carolina minors' ability to access important information online.

Outlawing targeted advertising to South Carolina minors through their social media accounts would limit South Carolina teenagers from reaching a wealth of information and content that otherwise would be at their fingertips. Furthermore, H 3431 would treat a South Carolina 7-year-old the same as a 17-year-old. A one-size-fits-all approach would disadvantage both age groups by failing to account for the significant differences between these groups in terms of their use of the Internet. The bill's ban would hamper older minors' growth by limiting access to information and resources that could be foundational to their maturation, development, and education. It would limit their ability to access information about universities, trade programs, military recruitment, job opportunities, cars, apartments, and other resources for their future. It would also restrict them from being active participants in the digital economy, which could have a significant and negative impact

⁴ H 3431, Section 39-5-920(2).

⁵ *Central Hudson Gas & Elec. Corp. v. Public Service Commission of New York*, 447 U.S. 557, 564-66 (1980).

⁶ See, e.g., *Va. Pharmacy Bd. v. Va. Consumer Council*, 425 U.S. 748, 756-57 (1976); *Sorrell et. al. v. IMS Health Inc.*, 564 U.S. 552, 570-71 (2011).

on South Carolina businesses. Shrinking the variety of products, services, content, viewpoints, voices, and information 17-year-olds can reach and depriving this cohort of the Internet's vast benefits will not protect them, but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states.

A federal court in Texas found a similar restriction unconstitutional just this month.⁷ The Texas law, which outlawed targeted advertising to minors unless parents provided consent for the activity, was struck down on First Amendment grounds. The court found no specific or compelling state interest articulated for removing teens' access to targeted advertising and stressed how targeted advertising can benefit minors by exposing them to scholarship, learning, and other opportunities. The court also noted that the law provided no justification for limiting a teenager's ability to view targeted advertising on a social media platform when targeted advertisements could reach the minor on a sports or shopping website. H 3431's prohibition is even broader than the invalidated law in Texas, as H 3431 proposes a flat ban on targeted advertising while the Texas law would have allowed targeted advertising with parental consent. As a result, H 3431 is unlikely to withstand legal scrutiny.

IV. A private right of action is an inappropriate form of enforcement for privacy legislation.

As presently drafted, H 3431 allows for private litigants to bring lawsuits.⁸ We strongly believe private rights of action should have no place in privacy legislation. Instead, enforcement should be vested with the South Carolina Attorney General ("AG") alone, because such an enforcement structure would lead to stronger outcomes for South Carolina residents while better enabling businesses to allocate resources to developing processes, procedures, and plans to facilitate compliance with new data privacy requirements. AG enforcement, instead of a private right of action, is in the best interests of consumers and businesses alike.

The private right of action in H 3431 will create a complex and flawed compliance system without tangible privacy benefits for consumers. Allowing private actions will flood South Carolina's courts with frivolous lawsuits driven by opportunistic trial lawyers searching for technical violations, rather than focusing on actual consumer harm.⁹ Private right of action provisions are completely divorced from any connection to actual consumer harm and provide consumers little by way of protection from detrimental data practices.

⁷ *Students Engaged in Advancing Texas v. Paxton*, 2025 WL 455463 (W.D. Tex. Feb. 7, 2025) (located [here](#)).

⁸ H 3431 at Section 39-5-970.

⁹ A select few attorneys benefit disproportionately from private right of action enforcement mechanisms in a way that dwarfs the benefits that accrue to the consumers who are the basis for the claims. For example, a study of 3,121 private actions under the Telephone Consumer Protection Act ("TCPA") showed that approximately 60 percent of TCPA lawsuits were brought by just forty-four law firms. Amounts paid out to consumers under such lawsuits proved to be insignificant, as only 4 to 8 percent of eligible claim members made themselves available for compensation from the settlement funds. U.S. Chamber Institute for Legal Reform, *TCPA Litigation Sprawl* at 2, 4, 11-15 (Aug. 2017), located [here](#).



Additionally, a private right of action will have a chilling effect on the state's economy by creating the threat of steep penalties for companies that are good actors but inadvertently fail to conform to technical provisions of law. Private litigant enforcement provisions and related potential penalties for violations represent an overly punitive scheme that do not effectively address consumer privacy concerns or deter undesired business conduct. They expose businesses to extraordinary and potentially enterprise-threatening costs for technical violations of law rather than drive systemic and helpful changes to business practices. A private right of action will also encumber businesses' attempts to innovate by threatening companies with expensive litigation costs, especially if those companies are visionaries striving to develop transformative new technologies. The threat of an expensive lawsuit may force smaller companies to agree to settle claims against them, even if they are convinced they are without merit.¹⁰

Beyond the staggering cost to businesses, the resulting snarl of litigation could create a chaotic and inconsistent enforcement framework with conflicting requirements based on differing court outcomes. Overall, a private right of action would serve as a windfall to the plaintiff's bar without focusing on the business practices that actually harm consumers. We therefore encourage legislators to remove the private right of action from the bill and replace it with a framework that makes enforcement responsibility the purview of the AG alone.

While we agree with protecting South Carolina minors online, H 3431 would do the opposite while imposing a severe, unnecessary, and unconstitutional restriction on targeted advertising. We urge you to defend the constitutional rights of South Carolina businesses and minors, and we encourage you to take steps to ensure South Carolina teens can continue to participate in the digital economy. We ask you to decline to advance H 3431 as presently drafted. We would welcome a meeting with you to further explain our concerns with the proposed legislation.

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¹⁰ For instance, in the early 2000s, private actions under California's Unfair Competition Law ("UCL") "launched an unending attack on businesses all over the state." American Tort Reform Foundation, *State Consumer Protection Laws Unhinged: It's Time to Restore Sanity to the Litigation* at 8 (2003), located [here](#). Consumers brought suits against homebuilders for abbreviating "APR" instead of spelling out "Annual Percentage Rate" in advertisements and sued travel agents for not posting their phone numbers on websites, in addition to initiating myriad other frivolous lawsuits. These lawsuits disproportionately impacted small businesses, ultimately resulting in citizens voting to pass Proposition 64 in 2004 to stem the abuse of the state's broad private right of action under the UCL. *Id.*



Thank you for your consideration of this letter.

Sincerely,

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CC: Co-Sponsors of H 3431